

Commercial Withdrawal Incidents

An Arizona Commercial Driver License holder convicted of violating a state law or local ordinance relating to a motor vehicle traffic in any state or a federal, provincial, territorial or municipal law of another country, shall notify the Division and their employer within 30 days after the date of conviction. The only exception being not required to report parking violations.

A CDL Class A, B or C will not be issued to an applicant who is under disqualification due to loss of driving privilege, cancellation, denial, suspension, revocation or withdrawal of an operator license, permit or privilege until properly restored.

- When the operator license is withdrawn for any reason, any CLP issued to the applicant becomes invalid
- The applicant must reapply by paying all required reinstatement fees and completing any required tests. In the interest of Public Safety, when a CDL is withdrawn (suspended, revoked, canceled or disqualified) or otherwise expired one year or more, all knowledge and skills tests must be re-administered.

When a CDL is withdrawn (suspended, revoked, canceled or disqualified) or otherwise expired one year or more, all knowledge and skills tests must be re-administered. If a Medical Examiner's Certificate (MEC) has expired, the customer must submit a current MEC and pay any reinstatement fees.

- If a Medical Examiner's Certificate (MEC) has expired, the CDL applicant/holder must have a FMCSA-qualified medical professional complete the required medical examination documentation:
 - For the INTERstate CLP or CDL applicant/holder, they **must** have a FMCSA-qualified medical professional **electronically** submit current medical examination documentation
 - For the INTRAstate CLP or CDL applicant/holder, the **paper** medical examination documentation **may** be submitted to a MVD field or ATP office or through email (medicalreview@azdot.gov (for customer))

CDL Disqualifications

There are two type of CDL disqualifications:

- Lifetime Disqualification - the individual is disqualified for life from operating a Commercial Motor Vehicle (CMV)
 - A commercial driver with a lifetime disqualification may reinstate their commercial driving privilege after ten years if they meet all eligibility requirements, see Policy [3.8.2 Disqualifications](#) for a complete list of requirements.
- Permanently Disqualified - the individual will never be able to obtain a CDL

► Lifetime Disqualification - Reapplying for a CDL After Ten Years

CDL Medical Suspension and Revocation

Failed to Submit USDOT Medical Exam Reports Incident

When a CDL holder's medical examination documentation has expired and they fail to submit valid documentation, a 'Failed to Submit USDOT Medical Exam Reports' Incident will be placed on the customer record.

Incapable of Operating a Motor Vehicle Incident

When a FMCSA-qualified medical professional electronically submits the medical examination documentation indicating the CLP or CDL applicant/holder is medically unqualified, MAX will automatically add the 'Incapable of Operating a Motor Vehicle' Incident to the record.

For additional information, see policies [3.1.5 CDL Medical Requirements](#) and [3.6.5 CDL Actions/Convictions](#).

Medical Incidents with Suspension and Revocations

Upon summarily suspending the licensee's privilege to drive a CMV for failure to maintain physical qualifications or for failure to submit a complete medical examiner's certificate, the Division shall simultaneously mail two notices **within 15 days** after a medical examiner's certificate is due or actual submission date to the licensee's address of record that:

- Suspends the licensee's CDL 10 days after the notice's date, and
- Revokes the licensee's CDL 15 days after the date of the suspension notice

A CDL will expire if revoked for one year or more. The holder of an expired CDL may obtain a new CDL by successfully completing all CDL original-application knowledge, vision, and skills testing, and by submitting a current medical examiner's certificate.

For additional information, see policy [3.6.5 CDL Actions/Convictions](#).



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Revocations Specific to CDL

The driving privilege of a person who holds a CDL is revoked, the Division shall update its records to reflect the revocation action and shall notify the Commercial Driver License Information System (CDLIS) of the action taken.

Failure to Pass Security Threat Assessment

Federal Regulations require that all CDL applicants or holders, requesting a Hazardous Materials Endorsement (HME), undergo and successfully complete a Transportation Security Administration (TSA) HME Security Threat Assessment (STA) prior to issuance of the HME. If notification is received that a

HME application is not approved, the applicant is mailed a CDL cancellation notice. If the licensee is an unexpired CDL holder with HME, the HME is no longer valid. If the CDL holder:

- **Surrenders** the HME to the Division within days of the mailed CDL cancellation notice and is otherwise qualified to hold the CDL, the H or X endorsement will be removed and a no fee duplicate CDL will be issued
- **Does not surrender** the HME to the Division within 15 days of the mailed CDL cancellation notice, the Arizona CDL will be canceled

CLP or CDL Fraudulent Testing

If the State received credible information and the individual has not been convicted, the State will require re-testing of the Knowledge and or Skills Testing. Re-Testing must be completed within 30 days of the State receiving notice. Failure to do so will result in the disqualification of the CLP or CDL. Any failure of the Knowledge or Skills Testing will result in a disqualification of the CLP or CDL. When a disqualification occurs the CLP or CDL holder will reapply under State procedures applicable to all CLP or CDL applicants.

Identity Theft

It shall be presumed that information from the driver history belongs to the holder of a CLP or CDL. The individual may overcome this presumption if they are able to present evidence of mistaken identity or identity theft. A hearing may be allowed when the Division receives driver history information resulting in a case of mistaken identity or identity theft.

- The individual will submit a written hearing request
- The hearing request shall be submitted within 20 days from the date of the mailed notice of action
- The hearing request shall indicate if the request is based on a case of mistaken identity or identity theft

Hearing and Appeals

The customer may request a hearing with the Executive Hearing Office (EHO) within 15 days of the licensing action date of notice.

View [Hearings Overview](#) topic for information and description.

CDL Voluntary Downgrade

An applicant, whose Commercial Driver License (CDL) driving privilege has been disqualified, suspended, or revoked, can choose to voluntarily downgrade from a CDL to a class D or M license.

If an applicant whose CDL driving privilege has been reported as Prohibited by Federal Motor Carrier Safety Administration (FMCSA) Drug and Alcohol Clearinghouse (DACH), they will only be eligible to driving non-commercial vehicles.

For additional information, see [CDL Downgrades](#).

Example of Incident and Withdrawal

Driving History

Credential History

Compliance Monitoring

Counselor Reports

Eligibility Check (Restricted License)

View Documents

Point Totals: 12 Months (0) | 36 Months (0)

Filter...

	Not Proc	Even Type	Description	Violation Code	Identifier	ACD Code	Juris	Occurrence Date	Point	Defe Eligib	With Actio	Withdrawal Start Date	Status	Status Date	Upda Date	Upda Info	Actions
		Incide	Status prohibited by Drug and Alcohol Clearinghouse (DACH)	28-3230			AZ	09/15/2024	0/0				Active	10/02/2024	10/02	Other	
		Withd	Status prohibited by Drug and Alcohol Clearinghouse (DACH)	28-3230			AZ	09/30/2024			CDL Privilege Stop			10/02/2024	10/02	Other	

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Example of AZ Privilege Status

- Will display as ELG in the CDL field

Driver Record

Search Customer *

Commercial License ☒

Arizona DL Number:

DOB:

State Of Record Pointer: No

CDLIS Indicator: Yes

Arizona PDPS Pointer: Yes

AZ Privilege Status:

CDL: ☒ ELG

DL: ☒ LIC

ID: ☒ ELG

Earliest Eligibility Date:

N/A

N/A

DL Earliest Restricted Eligibility Date:

Not Eligible

Required Hard Time:

Not Eligible

[Refresh Data](#)

[Driving History](#)
[Credential History](#)
[Compliance Monitoring](#)
[Counselor Reports](#)

[Eligibility Check \(Restricted License\)](#)
[View Documents](#)

Point Totals: 12 Months (0) | 36 Months (0)

Policies

[3.1.5 Commercial Driver License \(CDL\) Medical Requirements](#)

[3.3.1 License Identification Application](#)

[3.6.1 Commercial Driver License \(CDL\) Eligibility Requirements](#)

[3.6.2 Commercial Driver License \(CDL\) Issuance](#)

[3.6.5 Commercial Driver License \(CDL\) Actions Convictions](#)

[3.8.1 Cancellations](#)

[3.8.2 Disqualifications](#)

[5.1.4 Suspected Fraudulent Identity and or Documentation](#)

[7.1.5 CDLIS/ PDPS](#)

Forms

[Arizona Intrastate Medical Waiver, form #70-0106](#)

[Hearing Request, form #40-5008](#)

[Revocation Order - Medical Review, form #32-4102](#)

[Summary Suspension Order - Medical Review, form #26-5602](#)

Charts

[MVD License Suspensions](#)

HELPFUL LINKS

» [MVD / DMV Public Website](#) »

» [Customer Portal](#) »

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